

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CLCL055825: WELLS FARGO BANK, N.A. vs JEREMY COLE, AN INDIVIDUAL
08/19/2026 in Department 41
Motion for Judgment on the Pleadings**

DENIED.

The motion is improperly grounded on matters that do not appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 438, subd. (d).)

Notice to be provided by Plaintiff.

This is a Collections Case. The Complaint was filed on December 9, 2025, by Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) against Defendant Jeremy Cole (“Defendant”), pleading a cause of action for breach of contract. The Complaint alleged that on September 28, 2024, the parties entered into an implied-in-fact contract wherein Plaintiff issued Defendant a credit card, which Defendant accepted and used. Defendant breached the agreement by failing to pay the required payments. The amount due is \$17,779.77.

Defendants filed an Answer on February 13, 2026.

On March 23, 2026, Plaintiff filed a Motion to Deem Facts Admitted. The motion was granted on June 10, 2026.

On July 10, 2026, Plaintiff filed this Motion for Judgment on the Pleadings. No Opposition has been filed.

Plaintiff propounded basic discovery on Defendant, including a Request for Admissions. Defendant did not respond and on June 10, 2026, the Court deemed the requests for admissions as admitted. Thus, judgment should be entered in favor of Plaintiff and against Defendant.

Opposition: None filed.

Reply: None filed.

“Judicial notice may be taken of the following matters to the extent that they are not embraced within Section 451: [¶] (d) Records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.”

“Judicial notice may not be taken of any matter unless authorized or required by law.” [Citation]. Matters that are subject to judicial notice are listed in Evidence Code sections 451 and 452. A matter ordinarily is subject to judicial notice only if the matter is reasonably beyond dispute. [Citation]. Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial

notice if those matters are reasonably disputable.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113.)

Plaintiff asks that the Court take judicial notice of (1) Plaintiff’s Complaint, (2) Plaintiff’s Motion to Deem Request for Admissions, and (3) Order Deeming Plaintiff’s Request for Admissions as admitted.

Pursuant to *Fremont Indemnity Co. v. Fremont General Corp.*, *supra*, 148 Cal.App.4th 97, the Court may take judicial notice of the existence of the documents but not the truth of its statements. Moreover, there is no request for judicial notice of the Request for Admission itself, only the Motion to Deem Request for Admissions.

A party may make a statutory motion under Code of Civil Procedure section 438 or file a nonstatutory motion. (Weil & Brown, *The Rutter Group: Cal. Prac. Guide Civ. Proc. Before Trial* (Rev. June 2026) Ch. 7(I)-D Attacking the Pleadings, ¶¶ 7:276-7:277.)

“Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a).) The Declaration of Edgar B. Lopez states that on June 12, 2026, his office sent written correspondence to Defendant regarding Plaintiff’s intention to file a motion for judgment on the pleadings. (Lopez Dec., ¶ 4.) No response was received from Defendant. (Lopez Dec., ¶ 6.) The court finds that this attempt is sufficient to meet the requirement of the statute.

“The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” (Code Civ. Proc., § 438, subd. (d).)

“The motion normally lies only for defects fully disclosed on the *face* of the pleading under attack or by matters of which judicial notice may be taken. Declarations or other extrinsic matters are improper. Therefore, the judge hearing the motion *cannot* consider discovery admissions or other evidence controverting the pleadings. Rather, the pleading under attack must be accepted as true.” (Weil & Brown, *Cal. Prac. Guide: Civ Proc. Before Trial* (Rev June 2026) Ch. 7(I)-D Attacking the Pleadings, ¶7:322.)

The proper vehicle for raising controverted facts is by summary judgment rather than one for judgment on the pleadings. (See *Christian v. County of Los Angeles* (1986) 176 Cal.App.3d 466, 468.)

The Motion for Judgment on the Pleadings filed by Plaintiff is dependent on Requests for Admissions that are not pleadings but discovery requests. Therefore, this document is extrinsic to the pleadings and is not a matter that is subject to judicial notice. Even if the Court were to

take consider the document considering the order deeming the matters as admitted, the document is still not subject to judicial notice. Plaintiff's own case, *Columbia Casualty Co. v. Northwestern Nat. Ins. Co.* (1991) 231 Cal.App.3d 457, states: "Judicial notice of the truth of the content of court records is appropriate only when the existence of the record itself precludes contravention of that which is recited in it, for example where findings of fact, conclusions of law or judgments bind a party for purposes of res judicata or collateral estoppel. [Citations [. Otherwise, judicial notice for the truth of the content of court records is not appropriate either because the truth of the content is reasonably subject to dispute [citations]. Here the content of the file in the instant case which Northwestern asserts should be judicially noticed fails for both these reasons." (*Id.* at 473.)

Therefore, the motion for judgment on the pleadings is denied.